

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/02/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, and specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-02131

CASE NAME: DISCOVER BANK VS. CHRISTOPHER PEANG

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT
PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a dismissal and enter judgment per CCP 664.4, but the copy of the agreement they provided, attached to the Motion as Exhibit 1, is faded and some sections are hardly legible.

Disposition

Parties to appear in court.

Plaintiff to provide a clean copy of the 664.6 agreement.

2. 9:00 AM CASE NUMBER: L23-00256

CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS.
CALICARCOMOBILE.COM LLC

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The Motion was timely served by mail on the address for Defendant provided in the motion to be relieved as counsel, filed 11/10/25.

The Motion is unopposed.

On 1/27/26, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 9/24/25, ("Requests for Admission, Set One"), were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 9/24/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges subrogation, where the underlying claim is that Defendant was negligent in their attempt to detail the vehicle of the insured. The negligence caused damages in the amount of \$24,956.59.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order filed 2/13/26, (the "Deemed Admitted Order"). The Court takes judicial notice of

the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$24,956.59.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

3. 9:00 AM CASE NUMBER: L25-00290

CASE NAME: CITIBANK, N.A. VS. RAPHAEL UZOMA

***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion on 12/15/25 that was originally scheduled to be heard on 3/3/26. But on 3/3/26, this court found that Plaintiff had not served Defendant with notice of the Motion, and continue the Motion to 6/2/26, 9am.

This court also ordered, on 3/3/26, that Plaintiff must notify Defendant of the 6/2/26 Motion date.

There is no proof that Plaintiff has notified Defendant.

Disposition

This is the second motion appearance where Plaintiff has failed to notify the Defendant.

This Motion will be dropped, and not continued.

Court will file the Order.

4. 9:00 AM CASE NUMBER: L25-01414

CASE NAME: BANK OF AMERICA N.A. VS. JIMMY COBB

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTIONFOR ORDER THAT MATTERS INV. REQUEST FOR ADMISSION OF TRUTHJIMMY L COBB, 'OF FACTS BE DEEMED ADMITTED**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue ("Set One"), numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

CASE NAME: WELLS FARGO BANK, N.A. VS. SALLIE KNOWLTON

***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

The court dismissed this case on 5/26/26, at the request of the Plaintiff.

This Motion is moot.

Disposition

This matter is vacated.

6. 9:00 AM CASE NUMBER: L25-05587

CASE NAME: CITIBANK N.A. VS. BERTHA HERNANDEZ

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed

admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Exhibit A in Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

7. 9:00 AM CASE NUMBER: L25-05887

CASE NAME: BANK OF AMERICA N.A. VS. MARIA AGUILAR RODRIGUEZ

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any

documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in the Attachment to Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

8. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

*HEARING ON MOTION IN RE: FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

This Motion was originally scheduled for 2/24/26, but the court continued the matter to 3/24/26 because of a scheduling conflict. However, due to the inadvertent failure of the court to notify the parties of the 3/24/26, hearing, the court continued the Motion hearing to 6/2/26, 9am.

Background

Plaintiff attached the particular facts at issue, numbered One through Thirteen, in Exhibit One to the Declaration filed on 12/5/25, and titled, "Requests for Admission, Set One," as well as proof that they served Defendant with the discovery request, and declared

that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion and Declaration, as well as Notice of the 2/24/26, Motion hearing , indicating mail service to Defendant at the address listed on Defendant's Answer as well as other court filings.

The court subsequently provided mail notice to both parties of the 6/2/26, 9am, appearance.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One "Requests for Admission, Set One," of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-07528

CASE NAME: GRANITE TELECOMMUNICATIONS LLC VS. ARTESANAL FOODS, INC.

*HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION OF DEFENDANT
ARTESANAL FOODS, INC. FOR ORDER DEEMING ADMITTED TRUTH OF FACTS AND

**IMPOSING MONETARY SANCTIONS AS TO PLAINTIFF GRANITE TELE COMMUNICATIONS
FILED BY: ARTESANAL FOODS, INC.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff included the particular facts at issue, “Set One”, in Exhibit A, attached to their Motion, as well as evidence that they served Defendant with the discovery request, and declared that, despite attempts to meet and confer with Defendant about the discovery request – and despite several extensions by which to provide the response - Defendant never responded to the discovery request. (Defendant also, in this Motion, includes discovery requests for document production as well as interrogatories. The court does not find that this Motion is the proper remedy for purported violations of these discovery requests. Moreover, these purported violations are resolved by this court in Defendant’s other motion scheduled for the same day.)

Plaintiff also provided a declaration accounting for attorney fees.

Plaintiff seeks sanctions in the amount of \$1,852.50.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff’s Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers (Set One) shall be deemed admitted.

The court finds that attorney fees in the amount of \$1,852.50 are reasonable.

Plaintiff is sanctioned in the amount of \$1,852.50, and this amount shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.

Defendant to draw and file Order, and to provide written notice of this Order to Plaintiff.

10. 9:00 AM CASE NUMBER: L25-07528

CASE NAME: GRANITE TELECOMMUNICATIONS LLC VS. ARTESANAL FOODS, INC.

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION OF DEFENDANT ARTESANAL FOODS, INC. TO COMPEL DISCOVERY RESPONSES AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES THEREON AND DECLARATION OF JON WEBSTER FILED BY: ARTESANAL FOODS, INC.**

TENTATIVE RULING:

Defendant filed a Motion to compel responses from the Plaintiff to discovery requests. The Motion also requests sanctions in the amount of \$2,775 for the failure of Plaintiff to respond.

The Motion was timely served by mail on counsel for Plaintiff.

The Motion is unopposed.

Background

The Motion centers on two different discovery requests made of Plaintiff by Defendant^[1]. One request is a production of documents (Request One). The second request consists of interrogatories (Request Two). Both requests were included in Exhibit A, attached to the Motion. Both of the requests had been properly served on counsel for Plaintiff.

Defendant, in its declaration included in the Motion, contends that Plaintiff did not provide any discovery responses by the original deadline. And Defendant attached evidence of communications in their Motion reflecting that they offered deadline extensions to the Plaintiff, and that despite these extensions, Plaintiff still did not offer any response to the discovery requests.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad

discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories); Code Civ. Proc. § 2031.300 (as to demand for inspection of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.*

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the Discovery Requests at issue:

1. Defendant was duly served with the subject Discovery Requests.
2. No timely response was made to the Discovery Requests by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the Discovery Requests.
4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Discovery Requests, the Court finds that Defendant did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and orders as follows:

1. The Motions to Compel are GRANTED.
2. **Defendant shall serve verified responses to the Discovery Requests within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Discovery Requests have been waived. See Code Civ. Proc. §§ 2030.290 and 2031.300.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Defendant shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$2,775** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**

[\[1\]](#) Defendant's motion concerning the third discovery request - requests for admission - is moot since the court has, in another motion in this matter scheduled for the same date, ruled that those matters will be deemed admitted.

11. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER
HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS
FILED BY: SECURITYPLUS FEDERAL CREDIT UNION
TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, filed 8/7/25, alleges a breach of contract, in that Defendant failed to repay a loan to Plaintiff, as of 2/29/24, in the amount of \$20,002.34. The agreement, purportedly signed by Defendant, and attached to the Complaint, appears to reflect a loan for the purchase of a vehicle. The agreement reflects payment terms, including

amount and frequency, as well as consequences for nonpayment. In addition, Plaintiff attached to the Complaint a letter to Plaintiff, reflecting the final balance of the car loan after the car was repossessed and sold.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, marks the section 3(b), suggesting all the allegations are true, and only disputes matters of venue and jurisdiction. She leaves blank 3(a), which indicates a general denial, and she also leaves blank section 4, which provides an opportunity to list affirmative defenses.

In attachment 3(b)(1) to the Answer, however, Defendant writes that the court does not have personal jurisdiction over the Defendant, and denies the allegations because she “lacks sufficient information to admit or deny [them].”

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

In the instant matter, the Defendant has expressed her denial of the allegations in the attachment to her Answer. The court interprets this as a general denial, but even assuming *arguendo* that it does not suffice as such a denial, it appears as if it is a denial

based on lack of information or belief. Though there may be some ambiguity over the Defendant's intent because of the mere placement of this sentence in the form of the Answer, the court resolves any ambiguity in Defendant's favor.

Disposition

Plaintiff's Motion is denied.

The Court will file the Order.

**12. 9:00 AM CASE NUMBER: L25-12167
CASE NAME: NAVY FEDERAL CREDIT UNION VS. KHENDRIA WILLIAMS
HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS
FILED BY: NAVY FEDERAL CREDIT UNION**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff, as of 6/26/25, in the amount of \$4,345.36. The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, marks the box indicating that all statements in the Complaint are true. She writes, in Section 4, that she "admit[s] to settle for payment arrangement of amount owed." However, in Section 5, she also writes, "In denying the allegations of the complaint above, defendant denies not only the specific numbers and amounts alleged by the pleadings [sic]b but [illegible] number and amounts claimed."

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 691 (“Because the motion [for judgment] is, in effect, a general demurrer, the same rules apply.”).

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, there is clearly some ambiguity in Defendant’s Answer. One can

argue that she is both admitting and denying the allegations. However, a reasonable inference is that Defendant may be admitting some allegations – such as the existence of an agreement – but not others – such as the particular amount she owes.

Either way, this court finds that there is at least a reasonable possibility that the defect of ambiguity can be cured through amendment.

Disposition

Plaintiff's Motion is Granted.

Defendant will have 10 days from notification of written notice of this Order to file an Amended Answer.

Plaintiff will file the Order and provide notice to the Defendant of the Order.

13. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY:
TENTATIVE RULING:

Defendant filed a Motion to Quash the Summons on 2/24/26, arguing invalid service.

A copy of the Motion was served on Plaintiff.

The original motion hearing was scheduled for 3/24/26, but then the court continued the hearing to 6/2/26, 9 am. The court provided mail notice of the 6/2/26 date to both parties.

The Motion is unopposed but that may be because default was entered on 3/26/26.

The court will address this Motion notwithstanding the entry of default.

Background

Defendant specifically claims that substitute service in this matter is invalid because it was served on her son, whom she claims is not a competent member of her household. She writes that he does not live with her. She does not provide any more detail. She does not dispute that her son received the documents. She does not dispute that she

received the documents.

The proof of service of process, filed 1/26/26, contradicts this claim. This document reflects that a registered process server left the documents with a man who identified himself as the co-resident of the residence. The address of the residence is the same as the one listed on Defendant's Motion. The document also contained a declaration of reasonable diligence, reflecting the server's multiple attempts to personally serve the defendant.

The court takes judicial notice of the proof of service of process,

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Evidence Code Section 647*.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant's "dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address." *Id.*

These provisions are to be liberally construed if actual notice has been received by the defendant. *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants' home; the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants).

The test of whether substitute service is valid is whether the service is "reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied." *Id.*, quoting *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1416.

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

The court also finds, by a preponderance of the evidence, that Defendant actually received process. First, Defendant does not dispute this. But, second, the proof of service did not suggest the relationship of the co-resident to Defendant; it was the Defendant who identified this person as her son. It does not appear that Defendant could have known that it was her son who received the documents unless he, in fact, told her.

That Defendant received process supports the position that, at minimum, the service of process on the person identified in the proof of service was reasonably calculated to give the Defendant actual notice of the proceedings. It further lends credibility to the process server’s declaration that the recipient did, in fact, identify himself as the co-resident.

Disposition

Defendant’s Motion is denied.

Court to file Order.

Courtroom Clerk's Session

14. 1:31 PM CASE NUMBER: N26-0815
CASE NAME: MARY KESHISHIAN VS. CATHERINE GLENN
HEARING ON REQUEST FOR RESTRAINING ORDER
FILED BY:
TENTATIVE RULING:

15. 1:30 PM CASE NUMBER: RS25-0940
CASE NAME: MYA HODGES-WATSON VS. CHRISTOPHER COX

HEARING ON ORDER TO SHOW CAUSE IN RE:

FILED BY:

TENTATIVE RULING: